



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00116 Saddle Ridge, 16th Filing Zone Change
Date: May 10, 2021

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/10/2021
- Public Services Committee 5/18/2021
- Second reading 5/24/2021
- Public Services Committee 6/8/2021
- Third and final reading 6/14/2021

Related Items:

- Saddle Ridge, 16th Filing Annexation (UDC-21-00115)
- Saddle Ridge, 16th Filing Final Plat (UDC-21-00102)

Planning Commission Recommendation:

The Planning Commission heard this item at their May 3, 2021 meeting and recommended the Governing Body approve this application by a vote of 4-1.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY A-1 AGRICULTURAL AND RURAL RESIDENTIAL TO MR MEDIUM-DENSITY RESIDENTIAL FOR LAND LOCATED NORTH OF PERSHING BOULEVARD, WEST OF CHRISTENSEN ROAD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on May 3, 2021, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as:

a parcel of land, located in the east half of Section 25, Township 14 North, Range 66 West of the 6th P.M., Laramie County, more particularly described as follows: beginning at a point on the north right of way of Pershing Boulevard from which the E $\frac{1}{4}$ corner of Section 25, T.14N., R.66W., of the 6th P.M., bears N35°18'49"E, a distance of 678.48 feet; thence S65°53'48"W, a distance of 390.00 feet to the easterly line of Saddle Ridge 13th Filing; thence along said easterly line, N24°04'33"W, a distance of 434.02 feet to a point; thence 31.42 feet along said easterly line on a curve to the right, through an angle of 90°00'00", having a radius of 20.00 feet, and whose long chord bears N20°55'27", a distance of 28.28 feet to a point; thence continuing along the easterly line of Saddle Ridge 13th Filing, N10°37'24"W, a distance of 61.69 feet to a point; thence N65°55'27"E, a distance of 361.65 feet to a point; thence S24°04'33"E, a distance of 332.00 feet to a point; thence S65°55'27"W, a distance of 6.00 feet to a point; thence S24°04'33"E, a distance of 181.84 feet to the point of beginning.

is hereby changed to MR Medium-density Residential.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

MAY 3, 2021

STAFF REPORT

FILE: UDC-21-00116: Saddle Ridge, 16th Filing Zone Change

REQUEST: A request to rezone approximately 4.6 acres of land from County A-1 Agricultural and Rural Residential to MR Medium-density Residential in concert with an annexation

LOCATION: Northwest of the intersection of Pershing Boulevard and Christensen Road

AGENT: John Sayers – WJE, LLC

OWNER: WJE, LLC

ZONING: County A-1 Agricultural and Rural Residential

FUTURE LAND USE: Urban Residential

PURPOSE: To give land a City zone in concert with annexation

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of a portion of the east half of Section 25, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming from County A-1 Agricultural and Rural Residential to MR Medium-density Residential as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from County A-1 Agricultural and Rural Residential to MR Medium-density Residential for 4.6 acres of vacant land in concert with an annexation. The land is anticipated to developed as a single-unit residential uses, with associated streets and open areas.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	County A-1	Undeveloped
North	Urban Residential	County A-1	Undeveloped
South	Urban Residential	County AR	Low density Single-family Residential
East	Urban Residential	County A-1, County A-2	Rural Residential
West	Urban Residential	MR, P	Single-family Residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary and existing infrastructure exists in the neighborhoods to the west. Development will require infrastructure extensions and improvements. The Future Land Use Designation for this property is Urban Residential. The optimal zoning for the proposed future land use designation is any of the residential zones, including the MR zone.

The proposed zone change **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

The existing zoning to the south is AR and outside of City limits. The property to the north and east is zoned A-1 Agricultural and Rural Residential, and is also outside of City limits. The properties to the west are zoned MR Medium-density Residential and P Public District within City limits. The future land uses anticipated by the Comprehensive Plan and other official plans for this area anticipate higher-intensity, urban-style residential uses, and the MR zone is both compatible with existing zoning in the area and with the future land use designation.

The proposed zone change for the subject property **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The current County A-1 zone allows limited development options and is intended for low-intensity rural uses. Generally, parcels in this zone district are not expected to connect to urban services. The proposed MR zone allows a variety of more urban development options. Also, as the property is being annexed into the City, a City zone is required.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The standards of Article 4 apply to MR zoning. Due to the undeveloped nature of the land to the north and east, the subject property would be expected to meet all the standards of Article 4. The zone change is submitted in concert with a platting application, and the associated plat shows the area developing in accordance with the standards of Article 4.

The proposed zone change for the subject property **complies** with review criterion 4.

- 5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The MR zone is intended to develop with a variety of urban-style residential uses. The MR zone is applicable to areas designated Urban Residential by the Future Land Use Map, and is intended to be within ½ mile of commercial centers. This property is anticipated to develop with urban-style uses in the future. The property is within a mile of existing commercial centers located at Campstool and Christensen and at US 30 and Whitney. The property is about ½ mile away from an anticipated commercial center which would be located at the intersection of US 30 and Christensen.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The applicant is seeking the proposed zone change in concert with an annexation. The proposed MR zone is the zoning for nearby non-public properties within City limits. A specific development pattern is proposed with this application, but should that application not be executed, the MR zoning provides a variety of development options compatible with the surrounding neighborhoods.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is in an area covered by the following plans:

- PlanCheyenne

The application conforms to PlanCheyenne per the discussion with Review Criterion 1.

STAFF REVIEW:

Through the review process, no issues were identified by staff, and no comments regarding the proposed zone change were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The zoning map amendment application is proposed in concert with an annexation, and the MR zone is the City zone contiguous to the subject property for non-public development, and other nearby City development utilizes the MR zone. The proposed MR zone is also consistent with the future development patterns associated with the future land use designation. Staff recommends approval of the zoning map amendment as submitted by the applicant.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

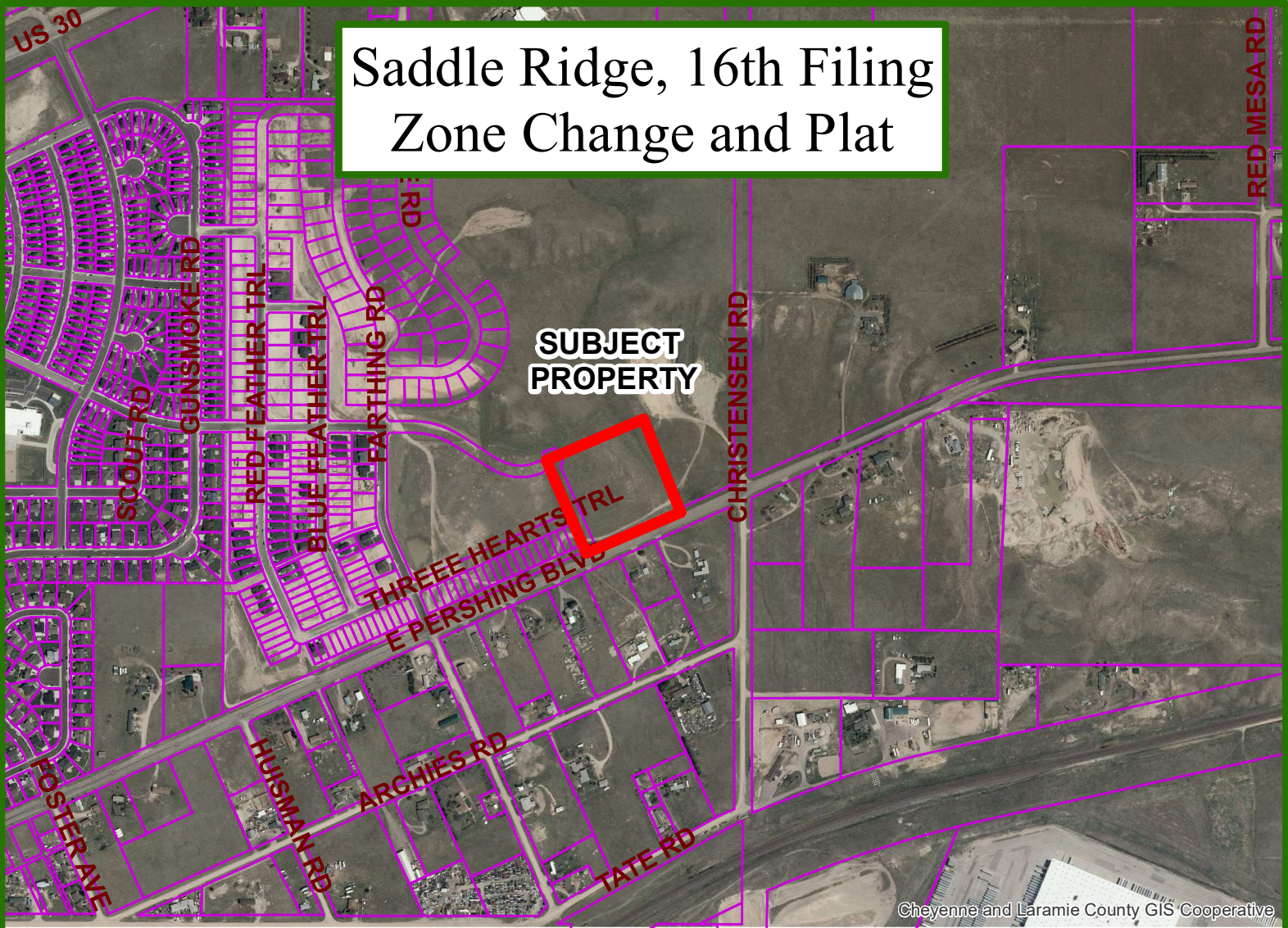
STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from County A-1 to MR.

ATTACHMENTS:

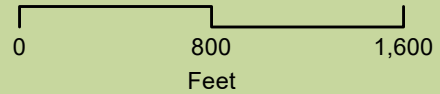
1. Aerial, Future Land Use Plan, and Current Zoning Map
2. Master Application
3. Applicant Provided Zone Change Map

Saddle Ridge, 16th Filing Zone Change and Plat

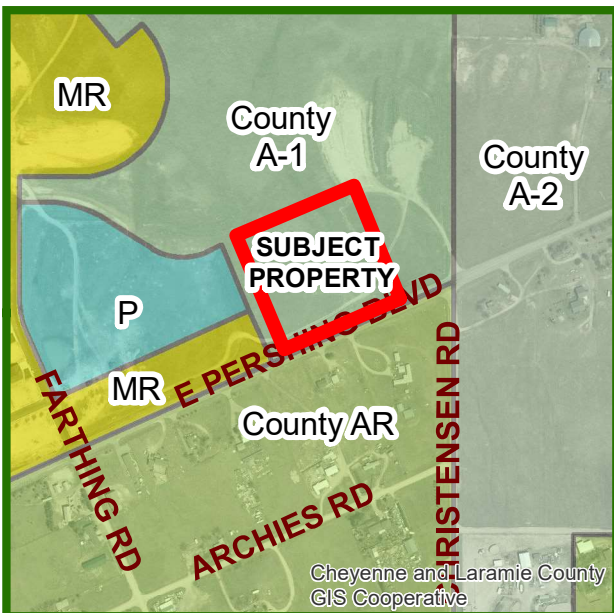


Application Number
Zone Change and Plat
UDC-21-00116
UDC-21-00102

Applicant: WJE, LLC
John Sayers
Owner: WJE, LLC



Current Zoning



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Zoning Map Amendment Application

Submission date: **29 March 2021, 11:31AM**

Receipt number: **12**

Related form version: **9**

General Information

Applicant Name: **WJE, LLC**

Applicant Address: **506 Shoshoni Street**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82009**

Applicant Phone: **307-634-8400**

Applicant Email: **johns@edwards-development.com**

Representative Name: **John Sayers**

Representative Address: **506 Shoshoni Street**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **307-634-8800 x 102**

Representative Email: **johns@edwards- development.com**

Owner Name: **WJE, LLC**

Owner Address: **506 Shoshoni Street**

Owner City:	Cheyenne
Owner State:	Wy
Owner Zip Code:	82009
Owner Phone:	307-634-8400
Owner Email:	johns@edwards-development.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	signed letter of authorization.pdf
Project Location (Street Address or General Location):	East of Dixon Drive Between Wilderness and Pershing Boulevard
Assessor's Parcel ID number(s)	14662510001800
Total Project Area	4.30 ACRES\187,476 S.F.
Existing Zoning	Other: County A-1
Requested Zoning	MR - Medium-density Residential

Application-Specific Questions

Written Statement	The intent of the Zone Change is to continue to provide to the City of Cheyenne the mixed used Density residences for the Community. This area is a continuation of the MR Zoning that has been used in the development of the Saddle Ridge Subdivision.
Zoning Map	ZONE CHANGE_16TH FILING-ZONE CHANGE.pdf
Notification Letter	adjacent property owners.csv Ltr to adjacent Land Owners.pdf
Supporting Documents / Information	PRELIM_SRII Sheet 1 (REVISED 7-17-15).pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

Acknowledgement of this review criteria

The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

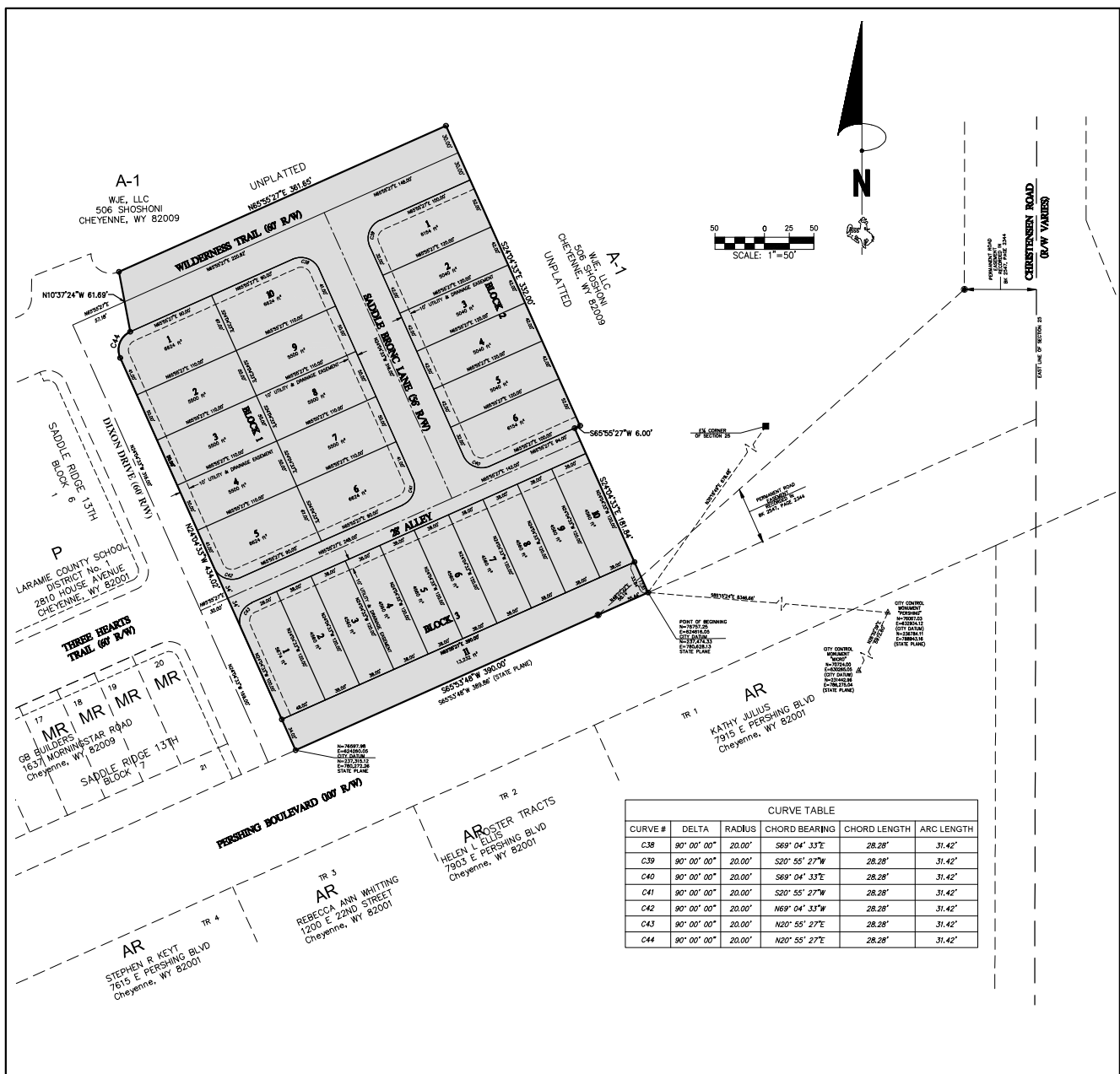
Name of signatory: John Sayers

Two handwritten signatures of John Sayers are displayed side-by-side. The signature on the left is a stylized, cursive 'J' followed by a horizontal line. The signature on the right is a more elaborate cursive signature, also starting with a large 'J' and ending with a long, sweeping horizontal line.

[Link to signature](#)

Please enter an email address for an email receipt.

johns@edwards-development.com



CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C38	90° 00' 00"	20.00'	S69° 04' 33"E	28.28'	31.42'
C39	90° 00' 00"	20.00'	S20° 55' 27"W	28.28'	31.42'
C40	90° 00' 00"	20.00'	S69° 04' 33"E	28.28'	31.42'
C41	90° 00' 00"	20.00'	S20° 55' 27"W	28.28'	31.42'
C42	90° 00' 00"	20.00'	N69° 04' 33"W	28.28'	31.42'
C43	90° 00' 00"	20.00'	N20° 55' 27"E	28.28'	31.42'
C44	90° 00' 00"	20.00'	N20° 55' 27"E	28.28'	31.42'

GENERAL NOTES

- 1.) BASIS OF AZIMUTH - CITY OF CHEYENNE DATUM REFERENCED FROM CITY CONTROL MONUMENTS "MICRO" AND "PERSHING"
- 2.) ALL AZIMUTHS AND DISTANCES SHOWN ON THIS PLAT ARE BASED ON CITY DATUM, EXCEPT WHERE NOTED (STATE PLANE)
- 3.) STATE PLANE COORDINATES - NAD83-2011, WYOMING EAST ZONE, US SURVEY FEET, COMBINATION FACTOR = 0.999669473
- 4.) THIS PROPOSED ZONE CHANGE DOES NOT FALL WITHIN ANY FEMA 100 YEAR FLOOD PLAIN ACCORDING TO FEMA MAP PANEL NO. 56021C114F DATED JANUARY 17, 2007.
- 5.) WATER AND SEWER TO BE PROVIDED BY CITY OF CHEYENNE BOPU.
- 6.) ALL UTILITIES TO BE PROVIDED ADJACENT TO PARCEL
- 7.) NEAREST FIRE HYDRANT AT INTERSECTION OF DIXON DRIVE AND PERSHING BOULEVARD
- 8.) CURRENT INCORPORATED CITY LANDS ABUT APPROXIMATELY 28.49%

LEGEND

- FOUND GLO STONE
- ALL LOT CORNERS, ANGLE POINTS, AND CURVE POINTS TO BE SET WITH A 3" X 24" LONG REBAR WITH 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S 5910"
- FOUND 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S 5910"
- △ CITY CONTROL MONUMENT
- ▨ PROPOSED AREA FOR ANNEXATION

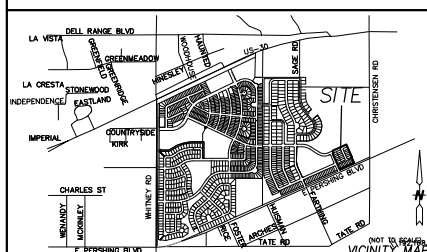
DESCRIPTION

A PARCEL OF LAND, LOCATED IN THE EAST HALF OF SECTION 25, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT ON THE NORTH RIGHT OF WAY OF PERSHING BOULEVARD FROM WHICH THE E 1/4 CORNER OF SECTION 25, T.14N., R.66W., OF THE 6TH P.M., BEARS N35°18'49"E, A DISTANCE OF 678.48 FEET; THENCE S65°53'48"W, A DISTANCE OF 390.00 FEET TO THE EASTERLY LINE OF SADDLE RIDGE 13TH FILING; THENCE ALONG SAID EASTERLY LINE, N24°04'33"W, A DISTANCE OF 434.02 FEET TO A POINT; THENCE 31.42 FEET ALONG SAID EASTERLY LINE ON A CURVE TO THE RIGHT, THROUGH AN ANGLE OF 90°00'00", HAVING A RADIUS OF 20.00 FEET, AND WHOSE LONG CHORD BEARS N20°55'27", A DISTANCE OF 28.28 FEET TO A POINT; THENCE CONTINUING ALONG THE EASTERLY LINE OF SADDLE RIDGE 13TH FILING, N10°37'24"W, A DISTANCE OF 61.69 FEET TO A POINT; THENCE N65°55'27"E, A DISTANCE OF 361.65 FEET TO A POINT; THENCE S24°04'33"E, A DISTANCE OF 332.00 FEET TO A POINT; THENCE S65°55'27"W, A DISTANCE OF 6.00 FEET TO A POINT; THENCE S24°04'33"E, A DISTANCE OF 181.84 FEET TO THE POINT OF BEGINNING. CONTAINING 4.61 ACRES MORE OR LESS.

ZONING

CURRENT ZONING A-1
PROPOSED ZONING MR



ZONE CHANGE MAP FOR SADDLE RIDGE 16th FILING

A PORTION OF THE EAST HALF OF SECTION 25, T.14N., R.66W., OF THE 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

PREPARED April 21

PAGE 1 OF 1



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14088 16th FILING
16th FILING UPDATES
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